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CASE #	CASE NAME	HEARING NAME
CVRI2501712	HICKSON VS HUTH	MOTION TO QUASH SERVICE OF SUMMONS ON 1ST AMENDED COMPLAINT

Tentative Ruling:

PROOF OF SERVICE: Proper

DENY

This is a real property dispute. On March 28, 2025, Plaintiffs Percy Green Sr. ("Percy") and Julie Hickson ("Hickson") (together "Plaintiffs") filed a Complaint against Defendants the Estate of Thelma Green ("Thelma"), Myers EPC Property LLC ("Myers EPC"), Economy Paint and Collision, LLC ("Economy Paint"), Darren William Myers ("Myers"), Eyad Yaser Abdeljawad ("Abdeljawad"), and Olen-Keith Sartain Guiab ("Guiab") for: (1) quiet title; (2) rescission; (3) constructive trust; (4) declaratory relief; (5) real estate fraud; (6) fraud; (7) cancellation of deed; and (8) breach of fiduciary duty.

In October 2025, Defendants Myers EPC, Economy Paint, and Myers (the "Myers Defendants") demurred to the Complaint. On December 8, 2025, the Court sustained Myers' demurrer to the 1st-7th causes of action, with leave to amend; sustained Economy Paint's demurrer to the 5th (real estate fraud), 6th (fraud), and 7th (cancellation of deed) causes of action, with leave to amend; and sustained Myers EPC demurrer to the 5th and 6th causes of action, with leave to amend.

On December 23, 2025, Plaintiffs filed a First Amended Complaint ("FAC") asserting the same causes of action. In the FAC, Plaintiffs allege that on September 30, 2010, Thelma transferred her interest in the real property located at 2587 Rubidoux Boulevard, Jurupa Valley, California (the "Rubidoux Property") to Moses Emmanuel Green Jr. ("Decedent"), Plaintiffs' sibling. (FAC at ¶¶ 1, 11, Ex. A.) On February 9, 2012, Percy, acting as power of attorney for Decedent, granted Rubidoux Property to himself and Hickson as joint tenants. (FAC at ¶ 12, Ex. B.) On May 2, 2014, Decedent died. (FAC at ¶ 13.) On April 30, 2019, Thelma executed a deed to the Rubidoux Property under her purported authority as the administrator of Decedent's estate, in which she misrepresented that title to the Rubidoux Property was held by Decedent and Thelma as joint tenants. (FAC at ¶¶ 20-21, Ex. C.) In that deed, she transferred the Rubidoux Property to herself as her separate property without court approval. (FAC at ¶¶ 22.) On January 2, 2020, Thelma executed a deed transferring the Rubidoux Property to Myers EPC. (FAC at ¶ 23, Ex. D.) However, Defendants did not complete a valid escrow process and relied on a fraudulent deed to acquire the Rubidoux Property. (FAC at ¶ 18.) Purported escrow documents list Economy Paint as the purchaser, despite title being transferred to Myers EPC. (FAC at ¶ 25.) Myers is the registered agent for both Myers EPC and Economy Paint and signed the purchase documents as Economy Paint's authorized agent. (FAC at ¶ 26.) Defendants Myers EPC, Economy Paint, and Myers (together the "Myers Defendants") were tenants of the Rubidoux Property, and knew Plaintiffs were the rightful owners through communications with Plaintiffs, the

probate matter, and because they made rental payments to Plaintiffs. (FAC at ¶¶ 15-17, 27.) Abdeljawad and Guiab assisted Thelma in executing the April 30, 2019, and January 2, 2020, deeds, and Abdeljawad received a portion of the sale proceeds, knowing that she did not have authority to sell the Rubidoux Property. (FAC at ¶¶ 30-31.) In February 2026, the Myers Defendants demurred to the 5th (real estate fraud) and 6th (fraud) causes of action, and on March 25, 2026, the Court sustained the demurrer to the fraud causes of action with leave to amend.

In October 2025, Abdeljawad filed a motion to quash service of the Summons and Complaint on him. On December 8, 2025, the Court granted the motion and quashed service, finding that Abdeljawad was not properly served with the Complaint. In February 2026, Plaintiffs filed an Application for Order for Publication of the Summons on Abdeljawad, after multiple attempts at service and Abdeljawad's refusal to provide his address or accept service. On March 6, 2026, the Court granted Plaintiffs' motion and entered an Order that Abdeljawad could be served by publication of the Summons in the Chino Valley Champion.

On April 14, 2026, Plaintiffs filed the operative Second Amended Complaint ("SAC") asserting causes of action for: (1) quiet title; (2) rescission; (3) constructive trust; (4) declaratory relief; (5) real estate fraud; (6) fraud; (7) cancellation of deed; and (8) breach of fiduciary duty. On May 27, 2026, the Myers Defendants filed an Answer to the SAC.

On May 14, 2026, Plaintiffs filed Proof of Publication to Abdeljawad, showing that notice of the Summons was published in the Chino Valley Champion on March 21 and 28, 2026, and April 4 and 11, 2026.

Abdeljawad ***moves to quash service on the grounds that service by publication was never completed or proven.*** He also moves to dismiss the action, arguing that there is no operative pleading because Plaintiffs failed to amend after a demurrer to the FAC was sustained, and Plaintiffs have failed to prosecute the action.

In opposition, Plaintiffs argue that service of Abdeljawad by publication was proper and completed, and proof of service was filed. They also argue that dismissal is not appropriate because they filed an SAC and are actively prosecuting the case.

In reply, Abdeljawad argues that the motion should be dismissed because at the time he filed this motion, no proof of service or SAC had been filed.

Summons is a form of court process issued during a judicial proceeding. (C.C.P. § 17(b)(7).) "A summons is the process by which a court acquires personal jurisdiction over a defendant in a civil action." (*MJS Enterprises, Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.) Under Code of Civil Procedure section 418.10(a), a defendant may file a motion to quash service of summons on the following grounds: (1) lack of jurisdiction; (2) inconvenient forum; or (3) dismissal pursuant to a delay in prosecution. (*Id.* at § 418.10(a).)

When a defendant challenges the court's personal jurisdiction on the grounds of improper service of process, the plaintiff has the burden to prove the existence of jurisdiction by proving the facts requisite to an effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...." (*Braugh v. Dow* (2023) 93 Cal.App.5th 76, 87.)

C.C.P. § 415.50 permits service of summons by publication. It is strictly construed and demands "strict compliance." (*County of Riverside v. Superior Court* (1997) 54 Cal.App.4th 443, 450.) In order to obtain an order permitting service by publication, a plaintiff must submit the declaration of a competent witness to show that reasonable attempts have been made to serve the defendants by some other authorized method; and (2) the existence of a cause of action or interest in property. (Civ. Proc. Code, § 415.50(a).) Reasonable diligence means a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. (*Watts, supra*, 10 Cal.4th at 749 n. 5. See also *Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 42 [declaration must establish reasonable diligence by "probative facts based upon personal knowledge"].)

Abdeljawad is not challenging the publication order itself but instead arguing that service by publication was never completed, and no proof of service was filed. This is incorrect. As set forth above, notice of the Summons was published in the Chino Valley Champion on March 21 and 28, 2026, and April 4 and 11, 2026, and on May 14, 2026, Plaintiffs filed Proof of Publication to Abdeljawad. (See, Proof of Publication, dated 5/14/26.) Accordingly, the evidence shows Abdeljawad was properly served by publication, and the motion should be denied.

Abdeljawad also ***moves to dismiss the action*** on two grounds: (1) for failure to amend after the demurrer to the FAC was sustained with leave to amend pursuant to C.C.P. § 581(f)(2); and (2) for failure to prosecute pursuant to C.C.P. 583.410.

C.C.P. § 581(f)(2) states that when a demurrer is sustained with leave to amend and an amended complaint is not filed within the time allowed by the Court, the Court may dismiss the pleading. In the present case, the Court sustained the Myers Defendants' demurrer to the fraud causes of action with leave to amend on March 25, 2026. This ruling did not dispose of the entire FAC, so even if Plaintiffs failed to amend, the action could proceed on the remaining causes of action and as to all Defendants who were not parties to the demurrer, including Abdeljawad. Furthermore, Plaintiffs did file a SAC on April 14, 2026. Therefore, C.C.P. § 581(f) does not provide a basis for dismissing the action.

Pursuant to C.C.P. § 583.410(a), "[t]he court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." California Rules of Court, rule 3.1342(e) sets forth relevant matters that the court is to consider in determining whether to grant a motion to dismiss. These factors include the extent of the parties' settlement negotiations/discussions, diligence of the parties in pursuing discovery or other pretrial proceedings, the complexity of the case,

the nature and extent of delay attributable to either party, the court's calendar and availability, and whether the interest of justice is best served by dismissing the case. (*Id.* at (e)(3), (4), (5), (7), (8), and (9).) Here, there is no evidence that Plaintiffs have delayed prosecuting this case. The Myers Defendants filed multiple demurrers, and in response, Plaintiffs have amended their Complaint twice. Additionally, while Abdeljawad has only recently been served, it appears this is more likely due to him filing a motion to quash and then attempting to evade service, than Plaintiffs' lack of prosecution.

Accordingly, ***the motion is denied.***